

23SMCV04680 23SMCV04680

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-27

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 27, 2026

CASE NUMBER

23SMCV04680

MOTION

Motion to Continue Trial

MOVING PARTIES

Defendants Jamesons SM, LLC (erroneously sued as Jameson's

Irish Pub Santa Monica) and Stephen Gardner-Rivera

OPPOSING PARTIES

none

BACKGROUND

This case arises from allegations that Plaintiffs were assaulted and battered by security at a pub.

The operative First Amended Complaint ("FAC") filed by Plaintiffs

Kurush Saadat and Elizabeth Wilson ("Plaintiffs") allege ten causes of action

as follows:

1.

Assault

2.

Battery

3.

Negligence

4.

Negligent Hiring

5.

Premises Liability

6.

Vicarious Liability for Assault

7.

Vicarious Liability for Battery

8.

Intentional Infliction of Emotional Distress

9.

Negligent Infliction of Emotional Distress

10. Interference

with Exercise of Civil Rights

The FAC was originally brought against Defendants Jamesons SM, LLC

(erroneously named as Jameson's Irish Pub Santa Monica) and Sunset Restaurant

Group LLC. Sunset was voluntarily

dismissed on February 21, 2025.

On May 6, 2026, Defendants Solcon Security, LLC, Bryan Ray, and Steven

Gardner-Rivera were subsequently added Does 1 through 3, respectively. Default was entered against Solcon on August

12, 2026, and Ray and Gardner-Rivera have yet to be served.

Jamesons and Gardner-Rivera now move to continue the trial date and

all related pre-trial deadlines. The

motion is unopposed.

LEGAL

STANDARD

California Rules of Court, rule

3.1332(c), provides:

Although continuances of trials are disfavored, each request for a

continuance must be considered on its own merits. The court may grant a continuance only on an

affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause

include:

(1) The unavailability of an

essential lay or expert witness because of death, illness, or other excusable

circumstances;

(2) The unavailability of a

party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial

counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial

counsel, but only where there is an affirmative showing that the substitution

is required in the interests of justice;

(5) The addition of a new party

if:

(A) The new party has not had a

reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not

had a reasonable opportunity to conduct discovery and prepare for trial in

regard to the new party's involvement in the case;

(6) A party's excused inability

to obtain essential testimony, documents, or other material evidence despite

diligent efforts; or

(7) A significant,

unanticipated change in the status of the case as a result of which the case is

not ready for trial.

Factors the Court considers in ruling on a motion for continuance

include:

(1) The proximity of the trial

date;

(2) Whether there was any

previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the

continuance requested;

(4) The availability of

alternative means to address the problem that gave rise to the motion or

application for a continuance;

(5) The prejudice that parties

or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to

a preferential trial setting, the reasons for that status and whether the need

for a continuance outweighs the need to avoid delay;

(7) The court's calendar and

the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is

engaged in another trial;

(9) Whether all parties have

stipulated to a continuance;

(10) Whether the interests of

justice are best served by a continuance, by the trial of the matter, or by

imposing conditions on the continuance; and

(11) Any other fact or

circumstance relevant to the fair determination of the motion or application.

(Rule 3.1332(d).)

ANALYSIS

Trial in this matter is currently

scheduled for September 28, 2026. Jamesons

and Gardner-Rivera move to continue the trial and all related pretrial

deadlines by at least six (6) months on the grounds that (1) Jamesons'

insurance carrier has recently and unexpectedly withdrawn its coverage and defense of the case, and new counsel must be retained and brought up to speed and the insurance denial may change the settlement posture of the case; and (2) the newly-named Defendant Gardner-Rivera, Jamesons' former employee, has not yet had sufficient time to prepare for trial.

CONCLUSION AND ORDER

In

lieu of continuing the trial as requested, the Court orders as follows:

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The Final Status Conference and Trial are vacated.

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The Court sets a Trial Readiness Conference on

October 15, 2026 at 8:30 A.M. in Department 207.

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The parties shall meet and confer in person, or remotely,

on or before September 18, 2026 to prepare a comprehensive discovery plan that

identifies ALL outstanding non-expert and expert discovery and

details on how the parties will complete/resolve such discovery in order to

prepare for trial or other resolution, without Court intervention.

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The parties shall file their discovery plan on or

before October 8, 2026.

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Plaintiffs shall effectuate service of the summons

and complaint on Defendants Bryan Ray and Steven Gardner-Rivera, or if service has

been perfected, Plaintiffs shall file the attendant proofs of service, on or

before September 18, 2026. As such, the

Court sets an Order to Show Cause re Sanctions against Plaintiffs for failure

to serve the summons and complaint on October 15, 2026 at 8:30 A.M. in

Department 207. If Plaintiffs fail to

perfect service of the summons and complaint, the Court may dismiss Defendants Bryan

Ray and Steven Gardner-Rivera as permitted under the Code of Civil Procedure

and the California Rules of Court.

Defendants

shall provide notice of the Court's Orders and file the notice with a proof of

service forthwith.

DATED: August 27, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court